

GAHC010116862018



THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : Crl.Pet. 512/2018

1:GOAL ASMA
W/O- FIZNUR HUSSAIN, C/O- TAPAN DAS, R/O- LANKESWAR, NEAR
PADMA BAKERY, OPP BORDER ROAD ORGANISATION OFFICE,
JALUKBARI, GUWAHATI- 14, DIST- KAMRUP(M), ASSAM

VERSUS

1:THE STATE OF ASSAM AND ANR.
REP. BY THE PP, ASSAM

2:FIZNUR HUSSAIN
S/O- MD. SIKANDAR ALI
R/O- DHOLAJAN
PANAKA CHARIALI
NUMALIGARH
P.O- NUMALIGARH
P.S AND DIST- GOLAGHAT
ASSAM
PIN- 78569

Advocate for the Petitioner : MR. R ISLAM

Advocate for the Respondent : PP, ASSAM

**BEFORE
HONOURABLE MR. JUSTICE PARTHIVJYOTI SAIKIA**

JUDGEMENT

Date : 28-01-2020

Heard the learned Senior Counsel, Mr. A. M. Bora, assisted by Mr. R. Islam, learned counsel appearing for the petitioner. Also heard Mr. J. Roy, learned counsel assisted by Mr. H. M. R. Haque, appearing for the respondent No. 2.

2. By this application under Section 482 of the Cr.P.C., the petitioner has prayed for quashing and setting aside the G.R. Case No. 280/2017, arising out of F.I.R. No. 116/2017, dated 21.02.2017, pending in the Court of learned Judicial Magistrate First Class, Golaghat, Assam.

3. Here in this case, the F.I.R. was lodged by the respondent No. 2, Md. Fiznur Hussain, an employee of the NRL. He was provided one residential quarter by the employer NRL. He married the petitioner, Goal Asma, in the year 2010 and out of their wedlock, they have one child who is about 10 years old now. Md. Fiznur Hussain has alleged that his wife treated him like a slave and she was very rude to him. On 21.11.2015, the respondent husband went out his residence because of fear for his life. He then took a house on rent but there also he could not have a peaceful life as different student organizations as well as women bodies started to give him trouble, albeit at the behest of the petitioner. 1 (one) year later, on 15.11.2016, NRL authority directed the respondent husband to vacate the official resident given to him on the ground that he did not stay there. At that time, he applied for divorce before the Sadar Kazi and accordingly, he got the Talaque Nama.

4. Thereafter, the respondent husband informed the NRL authority about his divorce and accordingly, this time the NRL management asked the petitioner to vacate the official residence given to her husband. The petitioner refused to vacate the house. This time the NRL authority started to put pressure upon the respondent husband to have the house vacated by the petitioner. The respondent /husband has alleged that he was scared of his wife.

5. With the aforesaid factual matrix the respondent /husband had lodged an F.I.R. before the police and the police registered the case under Sections 294/506 of the Indian Penal Code. Not only that, the police even filed the Charge-Sheet against the petitioner alleging that she has committed the

offence under Sections 294/506 of the Indian Penal Code.

6. The learned Senior Counsel, Mr. Bora, appearing for the petitioner, has submitted that in this case Section 294 of the Indian Penal Code would not lie as because the acts mentioned in Section 294 of the Indian Penal Code must be committed in the public place. So far as Section 506 of the Indian Penal Code is concerned, Mr. Bora has relied upon a decision of the Hon'ble Supreme Court that was rendered in the case of *Vikram Johar Vs. State of Uttar Pradesh & Anr.* reported in (2019) SCC Online 609. For ready reference, the relevant portion of the said judgment is quoted herein under –

"24. In another judgment, i.e., Manik Taneja and Another Vs. State of Karnataka and Another, (2015) 7 SCC 423, this Court has again occasion to examine the ingredients of Sections 503 and 506. In the above case also, case was registered for the offence under Sections 353 and 506 I.P.C. After noticing Section 503, which defines criminal intimidation, this Court laid down following in paragraph Nos. 11 and 12:-

11. XXXXXXXXXXXXXXXX A reading of the definition of "criminal intimidation" would indicate that there must be an act of threatening to another person, of causing an injury to the person, reputation, or property of the person threatened, or to the person in whom the threatened person is interested and the threat must be with the intent to cause alarm to the person threatened or it must be to do any act which he is not legally bound to do or omit to do an act which he is legally entitled to do.

12. In the instant case, the allegation is that the appellants have abused the complainant and obstructed the second respondent from discharging his public duties and spoiled the integrity of the second respondent. It is the intention of the accused that has to be considered in deciding as to whether what he has stated comes within the meaning of "criminal intimidation". The threat must be with intention to cause alarm to the complainant to cause that person to do or omit to do any work. Mere expression of any words without any intention to cause alarm would not be sufficient to bring in the application of this section. But material has to be placed on record to show that the intention is to cause alarm to the complainant. From the facts and circumstances of the case, it appears that there was no intention on the part of the appellants to cause alarm in the mind of the second respondent causing obstruction in

discharge of his duty. As far as the comments posted on Facebook are concerned, it appears that it is a public forum meant for helping the public and the act of the appellants posting a comment on Facebook may not attract ingredients of criminal intimidation in Section 503 IPC."

25. In the above case, allegation was that appellant had abused the complainant. The Court held that the mere fact that the allegation that accused had abused the complainant does not satisfy the ingredients of Section 506.

26. Now, we revert back to the allegations in the complaint against the appellant. The allegation is that appellant with two or three other unknown persons, one of whom was holding a revolver, came to the complainant's house and abused him in filthy language and attempted to assault him and when some neighbours arrived there the appellant and the other persons accompanying him fled the spot. The above allegation taking on its face value does not satisfy the ingredients of Sections 504 and 506 as has been enumerated by this Court in the above two judgments. The intentional insult must be of such a degree that should provoke a person to break the public peace or to commit any other offence. The mere allegation that appellant came and abused the complainant does not satisfy the ingredients as laid down in paragraph No.13 of the judgment of this Court in Fiona Shrikhande (supra)."

7. Per contra, Mr. Roy, learned counsel for the respondent No. 2, submits that the case should go for trial.

8. It is a settled law that the jurisdiction under Section 482 of the Cr.P.C. has to be exercised sparingly and with circumspection. While exercising this power, the Court should not embark upon any enquiry as to whether the allegations in the complaint are likely to be established by evidence or not.

9. In the *State of Haryana & Ors. Vs. Bhajan Lal & Anr.*, reported in 1992 Suppl (1) SCC 335, the Hon'ble Supreme Court as held that when the allegations made in the F.I.R. or complaint, even if they are taken at their face value and accepted in their entirety do not *prima facie* constitute any offence or make out a case against the accused and in that case, the jurisdiction under Section 482 of the Cr.P.C. can be exercised.

10. The provision of law as contend under Section 482 of the Cr.P.C. is meant to prevent an abuse of process of the Court. A Court proceeding ought not to be permitted to degenerate into a weapon of harassment or prosecution and Courts cannot be utilized for any oblique purpose. Where in the opinion of the Court chances of an ultimate conviction is bleak and no useful purpose is likely to be served by allowing the criminal prosecution to continue, in that case Section 482 of the Cr.P.C comes into play.

11. Reverting to the case in hand, it appears that the respondent No. 2 has lodged the F.I.R. on absurd grounds. He seems to have lodged the F.I.R. only because of the private grudges. Apart from that, no *prima facie* case under Section 294 and 506 have been made out in the F.I.R. lodged by the respondent No. 2. It will be an abuse of the process of the court if such a proceeding is allowed to continue. Therefore, such a proceeding must be quashed. Accordingly, the proceeding of the G.R. Case No. 280/2017, arising out of F.I.R. No. 116/2017, dated 21.02.2017, pending in the Court of learned Judicial Magistrate First Class, Golaghat, Assam, stands quashed.

12. With the observation as made above, the criminal petition stands disposed of.

JUDGE

Comparing Assistant